26CMCV00010 26CMCV00010

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-02

Motion: DEFENDANT’S DEMURRER TO THE FIRST AMENDED COMPLAINT

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Case Number: 26CMCV00010 Hearing Date: July 2, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

RICARDO ROBINSON,

Plaintiff,

vs.

WELLS
FARGO BANK N.A.,

Defendant.

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CASE NO: 26CMCV00010

[TENTATIVE]
ORDER RE: DEFENDANT’S DEMURRER TO THE FIRST AMENDED COMPLAINT

Dept.
A

DATE:
July 2, 2026

TIME:
8:30 A.M.

COMPLAINT
FILED: 01/05/2026

1st
AMENDED COMPLAINT FILED: 04/17/2026

TRIAL:
07/12/2027

MOVING
PARTY: Defendant Wells Fargo
Bank N.A.

RESPONDING
PARTY: Plaintiff Ricardo Robinson

1. Background

Plaintiff Ricardo Robinson
("Plaintiff") alleges that on October 1, 2025, he submitted an application for a line of credit to defendant Wells Fargo Bank N.A. ("Defendant"). Plaintiff alleges that he tendered a $60,000 "wet-ink negotiable instrument" to Defendant, but that Defendant denied Plaintiff's application for a line of credit and did not return the instrument to Plaintiff.

Plaintiff
alleges causes of action for conversion, breach of fiduciary duty, unjust enrichment, and declaratory relief.

2. Discussion

Defendant
demurs to all four causes of action in the First Amended Complaint ("FAC"). Defendant contends that each cause of action fails to plead sufficient facts to allege a cause of action.

Plaintiff
filed an opposition to Defendant's demurrer. In its reply, Defendant contended that this opposition was never served. Upon the court's inspection of Plaintiff's proof of service, it appears that there was a typo in the email address upon which the opposition was served. Given that Defendant was able to timely review the opposition and prepare a reply, the court will exercise its discretion to consider Plaintiff's opposition.

In opposition,
Plaintiff contends that the "wet-ink negotiable instrument" was a physical

asset that was converted and that Plaintiff adequately pled breach of fiduciary duty by pleading that a “special deposit” was created by the tender of this instrument.

A demurrer for
sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (Hahn).)¿When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.)¿In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice.¿(Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)¿“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters.¿Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.”¿(SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.”¿(Hahn, supra, 147 Cal.App.4th at p. 747.)¿

The ultimate
facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged.¿(Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403; see also Shields v. County of San Diego (1984) 155 Cal.App.3d 103, 133 [stating, “[o]n demurrer, pleadings are read liberally and allegations contained therein are assumed to be true.”]) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

a. Conversion

The elements
of conversion are the plaintiff’s possession of personal property, the defendant’s disposition of that personal property in a manner inconsistent with plaintiff’s property rights, and resulting damages. (Regent Alliance Ltd. v. Rabizadeh (2014) 231 Cal.App.4th 1177, 1181.) Personal property is defined as “[a]ny movable or intangible thing that is subject to ownership and not classified as real property.” (PROPERTY,
Black's Law Dict. (12th ed. 2024).)

Plaintiff alleges that he tendered a “wet ink negotiable instrument” to Defendant. This alleged tender is included in Exhibit A to the FAC. The alleged tender does not constitute personal property, as Plaintiff does not appear to have transferred any actual tangible or intangible thing to Defendant. Plaintiff’s Exhibit A indicates that the alleged collateral was “secured by the U. S. Treasury Department.” Therefore, no personal property is alleged to have been transferred from Plaintiff to Defendant.

Furthermore, Plaintiff alleges that he tendered this instrument to Defendant. However, Plaintiff has not alleged that Defendant disposed of this property in a manner inconsistent with Plaintiff’s property rights. Although Plaintiff has alleged that Defendant did not return the “wet ink negotiable instrument” to Plaintiff, Plaintiff has not alleged facts showing that Defendant was required to return any personal property to Plaintiff. An application for a line of credit depends upon the applicant’s credit score, not upon any consideration.

The court will therefore sustain Defendant’s demurrer to the first cause of action in the FAC. It is Plaintiff’s burden to establish the possibility of amendment, and Plaintiff has failed to demonstrate the possibility of amendment. (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 745.) The court will therefore sustain Defendant’s demurrer without leave to amend.

b. Breach of Fiduciary Duty

The elements of a breach of fiduciary duty are the existence of a fiduciary duty, its breach, and resulting damages. (O'Neal v. Stanislaus County Employees' Retirement Assn. (2017) 8 Cal.App.5th 1184, 1215.)

“The relationship between a bank and its depositor is not fiduciary in character but, rather, ‘ “founded on contract,” [citation] which is ordinarily memorialized by a signature card that the depositor signs upon opening the account. [Citation.]” (Kurtz-Ahlers, LLC v. Bank of America, N.A. (2020) 48 Cal.App.5th 952, 956 (Kurtz-Ahlers).)

Plaintiff
alleges that Defendant became a fiduciary by accepting a “special deposit” for a restricted business purpose and that Defendant breached that fiduciary duty. However, Plaintiff does not allege that any deposit with Defendant was made. Furthermore, as noted in Kurtz-Ahlers, the deposit of money with a bank does not create a fiduciary relationship between the parties.

Plaintiff
contends that a upon a “special deposit” for a specific purpose, a bank has a fiduciary duty to use those funds for the specified purpose, citing Engleman v. Bank of America Nat. Trust & Savings Ass'n (1950) 98 Cal.App.2d 327. However, as previously noted, Plaintiff has not alleged that any money was deposited with Defendant, nor has Defendant alleged that money was deposited with the bank for any specific purpose. Furthermore, Exhibit A to the FAC indicates that no actual money was deposited by Plaintiff into Defendant’s institution, as Plaintiff stated in his letter to Defendant that the alleged tender of payment constituted collateral “secured by the U. S. Treasury Department” which Plaintiff contended had been advanced to Defendant.

Furthermore,
even if Plaintiff adequately alleged a fiduciary duty, Plaintiff has failed to allege how Defendant breached any fiduciary duty by denying Plaintiff’s application for a line of credit.

The court will
therefore sustain Defendant’s demurrer to the second cause of action in the FAC. It is Plaintiff’s burden to establish the possibility of amendment, and Plaintiff has failed to demonstrate the possibility of amendment. (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 745.) The court will therefore sustain Defendant’s demurrer without leave to amend.

c. Unjust
Enrichment and Declaratory Relief

Plaintiff’s
third cause of action for unjust enrichment and fourth cause of action for declaratory relief depend upon his first two causes of action and cannot stand independently. As the court has sustained Defendant’s demurrer to the first two causes of action without leave to amend, the court will sustain Defendant’s demurrer to the third and fourth causes of action without leave to amend.

3. Conclusion

Based on the foregoing, the court SUSTAINS Defendant’s demurrer to the entire FAC, without leave to amend.

Defendant is ordered to give notice.

IT IS SO ORDERED.

DATED: July 2, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court